

SCHEDULE.

Sections 2
and 4.

PART I.

LOAN BY THE PUBLIC WORKS LOAN COMMISSIONERS
UNDER THE HARBOURS AND PASSING TOLLS, &C.
ACT, 1861.

Name of Borrower.	Amount of Loan.	Amount to be written off.
Eyemouth Harbour Trustees - -	£ 10,000	£ s. d. 177 13 6

PART II.

LOANS BY THE PUBLIC WORKS LOAN COMMISSIONERS
UNDER THE AGRICULTURAL CREDITS ACT, 1923.

Name of Borrower.	Amount of Loan.	Amount to be written off.
Mr. George Baber and Mrs. Elizabeth Mabel Ida Aitkens - - - -	£ 2,895	£ s. d. 2,000 10 6
Mr. James Doig - - - -	3,975	553 12 1
Mr. Albert Edwards - - - -	1,350	139 15 0
Mr. William Joseph Fletcher - -	300	206 5 3
Mr. Harold Adam Harris - - -	1,800	567 17 10
Mr. Alfred Ernest Merrett - - -	2,400	3 18 9
Mr. Henry John Riches - - -	3,300	1,499 4 9

CHAPTER 43.

An Act to amend the Constitution of Malta and to remove doubts as to the validity of certain Letters Patent and other enactments relating to Malta. [12th July 1932.]

WHEREAS by the Malta Constitution Letters Patent, 1921 (hereafter in this Act referred to as "the principal Letters Patent"), His Majesty was pleased to make provision for the establishment of responsible

Government in Malta and its dependencies, subject to certain limitations therein set forth :

And whereas the principal Letters Patent were amended by a proclamation of the Governor of Malta dated the fifteenth day of September, nineteen hundred and twenty-one, and by the Malta Constitution (Amendment) Letters Patent, 1927, the Malta Constitution (Amendment) Letters Patent, 1928, the Malta Constitution (Amendment) Letters Patent, 1930, the Malta Constitution (Amendment) Letters Patent, 1932, and the Malta Constitution (Amendment No. 2) Letters Patent, 1932 (hereafter in this Act referred to as "the amending Letters Patent") :

And whereas it is expedient that the principal Letters Patent, as so amended, should be further amended by Act of Parliament in manner hereafter appearing :

And whereas it is expedient to remove doubts which have arisen as to the validity of certain of the amending Letters Patent and as to the validity of the Order in Council, Acts and Ordinances hereafter mentioned :

Now, therefore, be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Amendment
as to re-
served
matters.

1.—(1) The Legislature of Malta shall not have power to pass laws with respect to the appointment (including qualification), remuneration, tenure of office or removal of judges of the superior courts of Malta.

(2) Without prejudice to the power of His Majesty to amend the provisions of the principal Letters Patent (as subsequently amended) in relation to reserved matters, it shall be lawful for His Majesty from time to time to amend the said Letters Patent by further Letters Patent, so as to provide that the Legislature of Malta shall not have power to pass laws with respect to the establishment, discipline, control and administration of the police or with respect to any particular matter or matters relating to the subjects aforesaid or any of them.

Provisions
as to judges.

2.—(1) The judges of the superior courts of Malta shall be appointed by the Governor of Malta in the name of and on behalf of His Majesty.

(2) No person shall be qualified to be appointed a judge of the said courts unless, during a period of not less than twelve years or during periods amounting in the aggregate to not less than twelve years, he has either practised at the Bar or served as a magistrate in Malta, or has partly so practised and partly so served.

(3) A judge of the said courts shall receive such remuneration as may be determined by the Governor of Malta from time to time :

Provided that—

- (a) the annual remuneration of all the judges shall not exceed in the aggregate the amount required by the principal Letters Patent (as subsequently amended) to be paid annually out of the Consolidated Revenue Fund of Malta on account of that remuneration; and
- (b) the remuneration of a judge shall not be diminished during his tenure of office.

(4) A judge of the said courts shall vacate his office on his attaining the age of sixty-five years, and may be removed from his office by the Governor of Malta in the name of and on behalf of His Majesty on the ground of proved misbehaviour or incapacity.

(5) The provisions of subsections (1) and (2) of this section shall not apply to a judge of the said courts who was appointed before the commencement of this Act.

3.—(1) For the purpose of the principal Letters Patent (as subsequently amended) there shall be constituted a Trade Union Council in accordance with the following provisions, that is to say—

Amend-
ments as to
Trade Union
Council.

- (a) the members of the Council shall be elected, in accordance with the law for the time being in force in Malta, by such trade unions as are registered at the time of the election in accordance with the law so in force;
- (b) no person shall be qualified to be elected a member of the Council—
 - (i) unless he is a member of a trade union which at the time of the election is registered as aforesaid; or

(ii) if he is a member of any other class of persons which is entitled to be represented by special members of the Senate of Malta :

(c) a member of the Council shall cease to be a member if and when a trade union by which he was elected ceases to be registered as aforesaid, or if and when he ceases to be qualified to be elected a member.

(2) In the principal Letters Patent (as subsequently amended) the expression "the Trade Union Council" shall mean the Council constituted in accordance with this section.

(3) A member of the Trade Union Council duly elected a special member of the Senate to represent the Council shall not be required to vacate his seat in the Senate by reason only that he has ceased to be a member of the Council.

(4) Notwithstanding anything in this section, any person who, immediately before the commencement of this Act, was a special member of the Senate, and had been duly elected such a member by the Trade Union Council as defined by the law then in force in Malta, may retain his seat in the Senate as if this section had not come into operation.

Amendment
asto persons
disqualified
as voters by
reason of
sentence for
crime.

4. Notwithstanding anything in section thirty of the principal Letters Patent (which provides that a person shall be disqualified to be registered as a voter on any register of voters, and to vote at any election of members of the Senate or of the Legislative Assembly, if he has been sentenced by any competent court for any crime mentioned in that section), no person shall be so disqualified by reason of any such sentence (whether passed before or after the commencement of this Act) after the expiration thereof.

Validity of
Letters
Patent,
Orders in
Council,
Ordinances
and Acts.

5.—(1) It is hereby declared that—

- (a) the Letters Patent and Order in Council set out in the First Schedule to this Act were validly passed and made and were within the powers reserved to His Majesty;
- (b) the Acts of the Legislature of Malta so set out were validly enacted and were within the powers of the Legislature;

- (c) the Ordinances of the Governor of Malta so set out were validly promulgated and were within the powers of the Governor.

(2) Where after the commencement of this Act any law purporting to have been passed by the legislature of Malta is assented to by the Governor of Malta in the name of and on behalf of His Majesty, the validity of the law or any provision thereof shall not be questioned in any legal proceedings whatsoever commenced after the expiration of one year from the date on which the law comes into operation, except on the ground that the law deals with a matter with respect to which the legislature of Malta has no power to make laws.

6.—(1) The amendments set out in the first column of the Second Schedule to this Act, being amendments to incorporate in the principal Letters Patent (as amended by the amending Letters Patent) the provisions of this Act respectively set out in the second column of that Schedule, shall be made in those Letters Patent, and any question of interpretation shall be settled by reference to those Letters Patent as amended in pursuance of this section.

Provisions
as to
amending,
repealing,
and print-
ing of
Letters
Patent.

(2) Every enactment and word which is directed by the amending Letters Patent or by this section to be substituted for or added to any portion of the principal Letters Patent, shall form part of the principal Letters Patent in the place assigned to it by the amending Letters Patent or the Second Schedule to this Act, as the case may be; and after the commencement of this Act the principal Letters Patent shall be construed as if the said enactment or word had been included in the principal Letters Patent in the place so assigned, and where it is substituted for another enactment or word had been so included in lieu of that enactment or word.

(3) A copy of the principal Letters Patent with the amendments, whether by way of substitution, addition or omission required by the amending Letters Patent and by this section, shall be prepared under the direction of the Secretary of State and certified by him, and His Majesty's Stationery Office shall print, in accordance with the copy so certified, all copies of the principal Letters Patent which are printed after the commencement of this Act, and the principal Letters Patent as so amended

are hereafter referred to and may be cited for all purposes as "the Malta Constitution Letters Patent."

(4) Notwithstanding anything in any Act or any rule of law, any provision of the Malta Constitution Letters Patent included therein by virtue of this Act may, in accordance with the said Letters Patent, be altered, amended, varied, repealed or revoked to the same extent, in the same manner and by the same authority as if the provision had been duly included therein by amending Letters Patent.

Short title.

7. This Act may be cited as the Malta Constitution Act, 1932.

SCHEDULES.

Section 5.

FIRST SCHEDULE.

LETTERS PATENT, ORDER IN COUNCIL, ACTS AND ORDINANCES DECLARED TO BE VALID.

Letters Patent.

The Malta Constitution (Amendment) Letters Patent, 1928.
The Malta Constitution (Amendment) Letters Patent, 1930.
The Malta Constitution (Amendment) Letters Patent, 1932.
The Malta Constitution (Amendment No. 2) Letters Patent,
1932.

Order in Council.

The Malta (Temporary Government) Order in Council, 1930.

Acts of the Legislature of Malta.

Acts Nos. I to XXIX of 1929.
Acts Nos. I to VII of 1930.

Ordinances of the Governor of Malta.

Ordinances Nos. 1 to 15 of 1930.
Ordinances Nos. 1 to 30 of 1931.
Ordinances Nos. 1 to 17 of 1932.

SECOND SCHEDULE.

Section 6.

**AMENDMENTS OF MALTA CONSTITUTION LETTERS
PATENT INCORPORATING PROVISIONS OF ACT.**

Amendment of Letters Patent.	Provision of Act incorporated.
1. The following subsection shall be inserted immediately after subsection (1) of section six :—	Section 3 (3).
“ (1A) Notwithstanding anything in the foregoing subsection, a person duly elected a special member of the Senate to represent the Trade Union Council shall not be required to vacate his seat in the Senate by reason only that he has ceased to be qualified to vote at an election of such a member of the Senate.”	
2. The following subsection shall be substituted for subsection (4) of section seven :—	Section 3 (1), (2) and (4).
“ (4) For the purpose of these Our Letters Patent, there shall be constituted a Trade Union Council in accordance with the following provisions, and in these Our Letters Patent, the expression “ the Trade Union Council ” shall mean the Council constituted in accordance with those provisions, that is to say :—	
(a) the members of the Council shall be elected, in accordance with the law for the time being in force in Malta, by such trade unions as are registered at the time of the election in accordance with the law so in force :	
(b) no person shall be qualified to be elected a member of the Council—	
(i) unless he is a member of a trade union which at the time of the election is registered as aforesaid; or	
(ii) if he is a member of the Clergy or of the Nobility or of the Graduates or of the Chamber of Commerce;	

2ND SCH
—*cont.*

Amendment of Letters Patent.

Provision of Act
incorporated.

- (c) a member of the Council shall cease to be a member if and when a trade union by which he was elected ceases to be registered as aforesaid, or if and when he ceases to be qualified to be elected a member :

Provided that, notwithstanding anything in this subsection, a person who, immediately before the commencement of the Malta Constitution Act, 1932, was a special member of the Senate, and had been duly elected such a member by the Trade Union Council as defined by the law then in force, may retain his seat in the Senate as if this subsection had not come into operation."

3. Paragraph (1) of section thirty shall be omitted, and the following section shall be inserted immediately after the said section thirty as section thirty-A :—

Section 4.

" 30A.—(1) No person sentenced by any competent court (whether before or after the commencement of the Malta Constitution Act, 1932) for any crime to which this section applies shall be entitled to be registered as a voter on any register of voters, or to vote at any election of members of the Senate or of the Legislative Assembly, until the expiration of the sentence, unless he receives a free pardon from Us for the crime for which he has been so sentenced.

(2) The crimes to which this section applies are—

- (a) crimes punishable by death, hard labour for any period, or imprisonment for a period exceeding one year ;
- (b) any other crime against the peace or honour of families referred to in Chapter II of Title VI of the First Part of the Second Book of the Criminal Laws of Malta ;

but do not include manslaughter or other crimes against the person in cases where these crimes are excusable for any of the causes contemplated in Article 233 and Nos. 1 and 2 of Article 236 of the said Criminal Laws."

Amendment of Letters Patent.	Provision of Act incorporated.	2ND SCH. —cont.
4. Section forty-one shall be amended by inserting at the end of subsection (1) thereof the following paragraph :—	Section 1 (1).	
“ (g) the appointment (including qualification) and remuneration of judges of the superior courts and the tenure of office and removal of such judges; ”		
and by inserting in subsection (6) after the word “Language” the words “section 55 (relating to judges).”		
5. The following section shall be inserted immediately after section forty-seven as section forty-seven-A :—	Section 5 (2).	
“ 47A. Where after the commencement of the Malta Constitution Act, 1932, any law purporting to have been passed by the Legislature is assented to by the Governor in Our Name and on Our behalf, the validity of the law or of any provision thereof shall not be questioned in any legal proceedings whatsoever commenced after the expiration of one year from the date on which the law comes into operation, except on the ground that the law deals with a matter with respect to which the Legislature has no power to make laws.”		
6. The following section shall be substituted for section fifty-five :—	Section 2.	
“ 55.—(1) The judges of the superior courts of Malta shall be appointed by the Governor in Our name and on Our behalf.		
(2) No person shall be qualified to be appointed a judge of the said courts unless, during a period of not less than twelve years, or during periods amounting in the aggregate to not less than twelve years, he has either practised at the Bar or served as a magistrate in Malta, or has partly so practised and partly so served.		
(3) A judge of the said courts shall receive such remuneration as may be determined		

2ND SCH.
—cont.

Amendment of Letters Patent.

Provision of Act
incorporated.

by the Governor of Malta from time to time :

Provided that—

(a) the annual remuneration of all the judges shall not exceed in the aggregate the amount required by section sixty-three of these Our Letters Patent to be paid annually out of the Consolidated Revenue Fund on account of that remuneration ; and

(b) the remuneration of a judge shall not be diminished during his tenure of office.

(4) A judge of the said courts shall vacate his office on his attaining the age of sixty-five years, and may be removed from his office by the Governor in Our name and on Our behalf on the ground of proved misbehaviour or incapacity.

(5) The provisions of subsections (1) and (2) of this section shall not apply to a judge of the said courts who was appointed before the commencement of the Malta Constitution Act, 1932."

7. The following words shall be inserted at the end of section sixty-eight :—

Section 1 (2).

" and in particular, but without prejudice
" to the generality of the foregoing provisions of this section, We do hereby
" reserve to Ourselves, Our heirs and successors, full power and authority from
" time to time to amend section forty-one
" so as to provide that the establishment,
" discipline, control and administration of
" the police, or any particular matter relating
" to the subjects aforesaid or any of them,
" shall be a reserved matter."